Fourteenth Amendment to the U.S. Constitution

Ratified July 9, 1868

Source: Fourteenth Amendment to the U.S. Constitution (1868), text via the U.S. National Archives, Milestone Documents. Public domain.

The Fourteenth Amendment is the constitutional backbone of Reconstruction. Section 1 overturned Dred Scott by guaranteeing birthright citizenship and applied due process and equal protection of the laws against the states. Later sections addressed Confederate officeholders and the South's representation in Congress. In the 20th century, Section 1 became the basis for the incorporation of the Bill of Rights against the states and for civil-rights decisions including Brown v. Board, Loving v. Virginia, and Obergefell.

> *Connect: The 14th Amendment's 'equal protection' language becomes the constitutional basis for Brown v. Board (1954). Trace one line from 1868 to your parents' generation.*

Key Passages

Section 1 — citizenship, due process, equal protection

> All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

Section 2 — apportionment

> Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election … is denied to any of the male inhabitants of such State, being twenty-one years of age, and citizens of the United States … the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.

Section 3 — Confederate disqualification

> No person shall be a Senator or Representative in Congress, or elector of President and Vice-President, or hold any office, civil or military, under the United States, or under any State, who, having previously taken an oath … to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same, or given aid or comfort to the enemies thereof.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Reconstruction: Southern states passed Black Codes, and President Johnson's lenient policies led Radical Republicans to take control of Reconstruction.
Intended Audience *Who was the source written for?*	The states, which had to ratify it, Congress, the courts, and former Confederate states, which had to ratify it to rejoin the Union.

HIPP Element	Your Analysis
Point of View *Whose perspective? Whose is missing?*	Republicans in Congress, especially Radicals, who wanted to protect freedpeople's citizenship and secure Republican and Union control after the war.
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. HIPP — Intended Audience: Who was Congress writing to in 1868? Identify at least TWO distinct audiences and how the text addresses each.
2. How does Section 2 punish Southern states for disenfranchising Black men — without explicitly banning the practice?
3. Identify ONE 20th-century case that turned on the Equal Protection Clause and explain its outcome.

The Fourteenth Amendment

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> The centerpiece of Reconstruction: it made the formerly enslaved citizens and guaranteed all persons "due process" and "equal protection of the laws" — the constitutional foundation for a century of later civil rights rulings.

Section 1 — citizenship, due process, equal protection

Section 1. All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

Section 2 — apportionment

Section 2. Representatives shall be apportioned among the several States according to their respective numbers, counting the whole number of persons in each State, excluding Indians not taxed. But when the right to vote at any election for the choice of electors for President and Vice-President of the United States, Representatives in Congress, the Executive and Judicial officers of a State, or the members of the Legislature thereof, is denied to any of the male inhabitants of such State, being twenty-one years of age, and citizens of the United States, or in any way abridged, except for participation in rebellion, or other crime, the basis of representation therein shall be reduced in the proportion which the number of such male citizens shall bear to the whole number of male citizens twenty-one years of age in such State.

Section 3 — Confederate disqualification

Section 3. No person shall be a Senator or Representative in Congress, or elector of President and Vice-President, or hold any office, civil or military, under the United States, or under any State, who, having previously taken an oath, as a member of Congress, or as an officer of the United States, or as a member of any State legislature, or as an executive or judicial officer of any State, to support the Constitution of the United States, shall have engaged in insurrection or rebellion against the same, or given aid or comfort to the enemies thereof. But Congress may by a vote of two-thirds of each House, remove such disability.

Section 4 — public debt

Section 4. The validity of the public debt of the United States, authorized by law, including debts incurred for payment of pensions and bounties for services in suppressing insurrection or rebellion, shall not be questioned. But neither the United States nor any State shall assume or pay any debt or obligation incurred in aid of insurrection or rebellion against the United States, or any claim for the loss or emancipation of any slave; but all such debts, obligations and claims shall be held illegal and void.

Section 5 — enforcement

Section 5. The Congress shall have power to enforce, by appropriate legislation, the provisions of this article.

Words to know

naturalized — made a citizen through a legal process

jurisdiction — the area where a government's laws apply

abridge — cut down or limit

privileges or immunities — the basic rights and protections that belong to citizens

apportioned — divided up among the states by population

aid or comfort — help or support given to an enemy

disability — the legal ban on holding office